



CHAPTER xlix

An Act to revise the existing obligations of the mayor aldermen and burgesses of the county borough of Halifax with respect to compensation water to make further provision with respect to their water undertaking and with respect to the local government of the said county borough and for other purposes:

[30th July 1949.]

WHEREAS the borough of Halifax (in the preamble to this Act referred to as "the borough") is a county borough under the government of the mayor aldermen and burgesses of the borough (in the preamble to this Act referred to as "the Corporation"):

And whereas the Corporation are the owners of a water undertaking from which they are (under and in pursuance of the provisions of certain local Acts) required to and do supply and distribute water within the borough and parts of the borough of Brighouse and from which undertaking they are (under and in pursuance of the provisions of certain of the said local Acts and of certain agreements) also required to and do supply water in bulk to the local authorities of other districts in the neighbourhood of the borough for distribution by them:

And whereas with a view to ensuring that the Corporation shall be and continue to be in a position to meet the demands made upon them for the supply of water it is expedient that the obligations of the Corporation with respect to the discharge of compensation water should be revised as in this Act provided:

And whereas it is expedient to make further provisions with respect to the water undertaking of the Corporation:

And whereas it is expedient to confer upon the Corporation further powers with respect to the local government of the borough and the borrowing of money:

And whereas the purposes of this Act cannot be effected without the authority of Parliament:

23 & 24 Geo. 5. c. 51. And whereas in relation to the promotion of the Bill for this Act the requirements of Part XIII of the Local Government Act 1933 have been observed:

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows (that is to say):—

PART I

PRELIMINARY

Short and
collective
titles.

1.—(1) This Act may be cited as the Halifax Corporation Act 1949.

16 & 17 Geo. 5. c. xxix.
19 & 20 Geo. 5. c. lxiv.

(2) The Halifax Corporation Acts 1823 to 1924 the Halifax Corporation Act 1926 the Halifax Corporation Act 1929 and this Act may be cited together as the Halifax Corporation Acts 1823 to 1949.

Act divided
into Parts.

2. This Act is divided into Parts as follows:—

Part I.—Preliminary.

Part II.—Revision of existing compensation water provisions.

Part III.—Water supply.

Part IV.—Finance.

Part V.—Miscellaneous.

Part VI.—General.

Incorporation
of Acts.

8 & 9 Geo. 6. c. 42.

3. So far as the same are applicable for the purposes and are not inconsistent with the provisions of this Act the following provisions of the Third Schedule to the Water Act 1945 are hereby incorporated with and form part of Parts II and III of this Act (that is to say):—

Part I (Interpretation) so far as it relates to the following provisions of the said Third Schedule; to sections

Part III (Compensation water);

In Part XVI (General and miscellaneous) sections 85, 86, 87, 90, 91 and 94:

Provided that in and for the purposes of this Act the expression "the undertakers" used in such incorporated provisions shall mean the Corporation.

PART II
—cont.

4. In this Act the several words and expressions to which Interpretation by the Acts wholly or partly incorporated with this Act meanings of terms. are assigned shall have the same respective meanings unless there be something in the subject or context repugnant to such construction and in this Act unless the subject or context otherwise requires—

"the borough" means the county borough of Halifax;

"the Corporation" means the mayor aldermen and burgesses of the borough;

"the council" means the council of the borough;

"the town clerk" means the town clerk of the borough;

"the medical officer" and "the sanitary inspector" mean respectively the medical officer of health and any sanitary inspector of the borough;

"the water undertaking" means the water undertaking of the Corporation as from time to time authorised;

(1) "the water limits" means the limits within which the Corporation are for the time being authorised to supply water;

"the Third Schedule" means the Third Schedule to the Water Act 1945;

"the Widdop reservoir" means the reservoir of that name authorised by section 10 (Power to make works and take lands according to deposited plans) of the Halifax Corporation Waterworks and Improvement Act 1868;

"the Walshaw Dean Lower reservoir" means the reservoir described in paragraph (a) of and authorised by section 6 (Power to make waterworks) of the Halifax Corporation Act 1898;

"the Lower Gorple reservoir" means the reservoir Work No. 8 authorised by section 16 (Power to make waterworks) of the Halifax Corporation Act 1922;

"the Ogden reservoir" means the reservoir on Orden Clough Skirden Clough and Hebble Brook authorised by section XVIII (Waterworks authorised to be made as herein described) of the Halifax Improvement Act 1853;

"the Mixenden reservoir" means the reservoir at or near and on the west side of the village of Mixenden authorised by section XVIII (Waterworks authorised to be made as herein described) of the Halifax Improvement Act 1853;

31 & 32 Vict.
c. cxxvii.

61 & 62 Vict.
c. cxlvi.

12 & 13 Geo. 5.
c. lxvi.

16 & 17 Vict.
c. clxvii.

PART I
—cont.26 Geo. 5. &
1. Edw. 8. c. 49.38 & 39 Vict.
c. 83.

“the Warley Moor reservoir” means the reservoir on Warley Moor authorised by section XVIII (Waterworks authorised to be made as herein described) of the Halifax Improvement Act 1853;

“the Minister” means the Minister of Health;

“the Act of 1933” means the Local Government Act 1933;

“the Act of 1936” means the Public Health Act 1936;

“Sunday school” means any school in which children are assembled for instruction on a Sunday or specially for religious instruction whether on a Sunday or not;

“the markets undertaking” means the markets undertaking of the Corporation as from time to time authorised;

“the general rate fund” means the general rate fund of the borough;

“statutory borrowing power” includes a power of borrowing money conferred on the Corporation by or under any enactment except paragraph (a) of subsection (1) of section 215 of the Act of 1933;

“statutory security” means any security in which trustees are for the time being authorised by law to invest trust moneys and any mortgage bond debenture debenture stock or other security authorised by or under any Act of Parliament passed or to be passed of any county council or municipal corporation or other local authority as defined by section 34 of the Local Loans Act 1875 but does not include annuities rentcharges or securities transferable by delivery or any securities of the Corporation;

“the market stock” means the Halifax new market consolidated stock created by virtue of section LXXV (Price to be paid for new market place) of the Halifax Improvement Act 1853;

“authorised security” means any mortgage stock bond or other security which the Corporation are for the time being authorised to grant create or issue or upon or by means of which the Corporation are for the time being authorised to raise money;

“enactment” means any Act of Parliament whether public general local or private any order or scheme made under an Act of Parliament or any provision in an Act of Parliament or in any such order or scheme.

PART II

REVISION OF EXISTING COMPENSATION WATER PROVISIONS

5. Section 10 of the Third Schedule shall apply in relation to the Widdop reservoir the Walshaw Dean Lower reservoir and the Lower Gorple reservoir (in this section called "the reservoirs") and shall in its application to those reservoirs have effect subject to the following provisions:—

Compensation
water Widdop
Walshaw Dean
and Gorple
reservoirs.

(1) (a) The prescribed quantity for the purposes of subsection (2) of the said section 10 shall be a quantity of four million one hundred and fifty thousand gallons per day;

(b) The prescribed limits shall be between the embankments of the reservoirs and a point four hundred and fifty yards downstream from the point where Rowshaw Clough enters the Hebden Water:

(2) The said prescribed quantity may be discharged from any one or more of the said reservoirs but the Corporation shall be under obligation to discharge water from such reservoirs or some or one of them only when and so far as such discharge is necessary to maintain a flow of water at the approved point of the prescribed quantity:

(3) As from the date on which the Corporation shall have constructed an approved gauge or gauges for the purposes of subsection (2) of the said section 10 sections 19 20 21 and 22 of the Halifax Corporation Water-works Act 1888 and sections 21 22 23 and 24 of the Halifax Corporation Act 1922 shall be repealed:

51 & 52 Vict.
c. xliv.

(4) Unless this section is repealed by any enactment on or before the first day of October nineteen hundred and fifty-nine the following provisions shall have effect:—

(a) The Corporation shall immediately after that date apply to the Minister under the said section 10 for the approval of points gauges and sites for the purposes of subsection (2) of the said section within the limits hereinafter prescribed;

(b) The prescribed limits for the purposes referred to in the foregoing sub-paragraph shall be distances of one hundred yards from the respective embankments of the reservoirs;

(c) So soon as the Minister shall have issued the said approvals the Corporation shall forthwith construct or provide approved gauges on the approved sites;

PART II
—cont.

(d) So soon as the Corporation shall have constructed or provided the said gauges—

(i) paragraphs (1) and (2) of this section shall cease to have effect ;

(ii) the prescribed quantity for the purposes of subsection (2) of the said section 10 shall be a quantity of three million eight hundred and forty thousand gallons per day ;

(iii) the said prescribed quantity may be discharged from any one or more of the said reservoirs.

Compensation
water Hebble
Brook.

6. Section 10 of the Third Schedule shall apply in relation to the quantity of water to be discharged into the Hebble Brook from the Ogden reservoir and the Mixenden reservoir and shall have effect subject to the following modifications and provisions :—

- (1) Sections XXXI and XXXII of the Halifax Improvement Act 1853 shall have effect in relation to the Hebble Brook as if they were re-enacted by this section :
- (2) The prescribed quantity for the purposes of subsection (2) of section 10 of the Third Schedule shall be a quantity discharged at a uniform rate of not less than eighty-two thousand five hundred gallons per hour over periods amounting in every week to a total of sixty-three and three-quarter hours between the hours of six o'clock in the morning and six o'clock in the evening of each weekday :
- (3) Subject as aforesaid the periods during which such quantity shall be discharged shall or may from time to time be regulated and determined by the majority of the occupiers of the several mills and works now erected or hereafter to be erected and who may be interested in such supply of water :
- (4) If the said occupiers shall fail to give notice to the Corporation in pursuance of the said section XXXII of the said Act of 1853 of the periods during which such quantity shall be discharged then until such notice shall be given the Corporation shall cause such quantity to be discharged at the rate aforesaid between the hours of six o'clock in the morning and a quarter to six in the evening from Monday to Friday inclusive in each week and from six o'clock in the morning to eleven o'clock in the morning on every Saturday :

- (5) The prescribed limits for the purposes of subsection (2) of section 10 of the Third Schedule shall be—

PART II
—cont.

in the case of the Ogden reservoir a distance of one hundred yards from the foot of the embankment of the said reservoir ;

in the case of the Mixenden reservoir a distance of one hundred yards from the foot of the embankment of the said reservoir ;

and the existing gauge within the said first-mentioned limits shall be deemed to be an approved gauge on an approved site for the purposes of the said subsection :

- (6) The prescribed quantity may be discharged in whole or in part from either the Ogden reservoir or the Mixenden reservoir :

- (7) Sections XXII to XXX and sections XXXIII to XXXV of the said Act of 1853 are hereby repealed.

7. Section 10 of the Third Schedule shall apply in relation to the Warley Moor reservoir and shall have effect as follows :—

Compensation
water
Luddenden
Brook.

- (1) For the purposes of subsection (2) of the said section the prescribed quantity for the supply and use of the reservoirs in the borough called Haigh Cote and Leadbeater reservoirs shall be a quantity not less than one million two hundred and twenty-two thousand gallons per day :

- (2) The prescribed limits for the purposes of subsection (2) of the said section shall be within one hundred yards of the foot of the embankment of the said reservoir and the existing gauge shall be deemed to be an approved gauge on an approved site for the purposes of the said subsection :

- (3) Section 18 of the Halifax Corporation Waterworks Act 1888 and section 59 of the Halifax Corporation Act 1902 are hereby repealed.

2 Edw. 7.
c. cxxiv.

PART III

WATER SUPPLY

8. In the determination of the prices referred to in subsections (2) and (3) of section 5 (Prices for water supplied in bulk to local authorities) of the Halifax Corporation Act 1924 and the surplus or deficiency referred to in the said subsection (3) regard shall be had to the costs charges and expenses of the Corporation preliminary to and of and incidental to the preparing applying for obtaining and passing of this Act and the execution thereof

As to
determination
of bulk supply
prices.
14 & 15 Geo. 5.
c. lxx.

PART III
—cont.

in so far as it relates to the water undertaking and the preparing obtaining passing and execution of this Act to the extent aforesaid shall be deemed to be included among the purposes set out in the Second Schedule to that Act.

Repeal of certain provisions relating to boats.

9. Section 16 (Reservation of fishing and sporting rights) of the Halifax Corporation Waterworks and Improvement Act 1868 and section 24 (Reservation of fishing and sporting rights) of the Halifax Corporation Waterworks Act 1888 so far as the said sections relate to the keeping of boats and the erection and maintenance of boat-houses are hereby repealed.

As to gratuitous supply of water to certain classes of premises.

10. From and after the passing of this Act section CLI (Gratuitous supply of water to hospitals &c.) of the Halifax Improvement Act 1853 shall be read and have effect as if the words "hospitals, infirmaries" were omitted therefrom.

Restricting supply in times of drought &c.

11. As from the expiration of five years from the passing of this Act—

(1) Notwithstanding anything contained in the Halifax Corporation Acts 1823 to 1949 or any contract or any obligations thereunder for the supply of water inside or outside the borough the Corporation may in times of frost drought unavoidable accident or other unavoidable cause or during the execution of necessary works limit the supply of water for domestic and other purposes inside and outside the borough provided that such limitation shall be made to apply equally amongst the consumers of the Corporation whether they be inside or outside the water limits so that no preference shall be given to consumers inside the borough over consumers outside the borough:

(2) Section 60 (Restricting supply in time of drought) of the Halifax Corporation Act 1902 shall be repealed.

Revision periods for bulk supply prices.

12. Notwithstanding anything in subsection (7) of section 5 (Prices for water supplied in bulk to local authorities) of the Halifax Corporation Act 1924 the revision periods for which provision is thereby made shall be periods of three years calculated from the first day of April nineteen hundred and forty-nine and every subsequent period of three years.

Supply in bulk to Dewsbury and Batley Corporations.

13.—(1) Except as may be otherwise agreed in writing between the Corporation and the purchasers the following provisions shall have effect:—

(a) The Corporation shall unless prevented by frost accident or other reasonable cause and subject to the provisions of section 11 (Restricting supply in times of drought

&c.) of this Act supply in perpetuity to the purchasers and the purchasers shall take the following quantities of wholesome water:—

(i) from the passing of this Act until the date mentioned in sub-paragraph (ii) of this paragraph a quantity at the rate of not less than fifty million gallons or more than ninety-one million gallons per quarter ;

(ii) from the date on which the purchasers shall have provided a new water main in substitution for or in addition to the existing main belonging to the purchasers leading from Clifton Bridge in the borough of Brighouse to Fox Royd reservoir in the borough of Dewsbury a quantity at the rate of not less than sixty-eight million gallons or more than ninety-one million gallons per quarter ;

(b) The supply shall be given at a meter belonging to the Corporation at or near Clifton Bridge aforesaid and the Corporation shall maintain the said meter the meter-house and apparatus connected therewith and shall be entitled to receive from the purchasers in respect thereof a payment at the rate of seventeen pounds per annum ;

(c) The readings of the meter shall be taken quarterly on the last days of March June September and December in every year and a representative of the purchasers shall be entitled to be present at such readings The provisions of section 59 (Register of meter to be evidence) of the Third Schedule shall apply to the supply of water in pursuance of this section ;

(d) The purchasers shall maintain all mains provided for the conveyance of the water supplied hereunder from the said meter to the service reservoir into which the water is delivered and shall subject to all necessary approvals and consents of the Minister as soon as practicable provide a new main in substitution for or in addition to the said existing main so as to be capable of carrying in the aggregate not less than the maximum quantity of water to be supplied hereunder and the cost of such provision and maintenance shall be borne by the purchasers in such proportions as they may from time to time agree ;

(e) The purchasers shall pay for the minimum quantity of water which they are obliged to take hereunder and for

PART III
—cont.

all additional water supplied hereunder at the following rates (that is to say):—

(i) for a period of five years from the passing of this Act at the rate of sixpence and one farthing per one thousand gallons plus the cost per one thousand gallons of filtration and treatment which cost shall be based until the thirty-first day of March nineteen hundred and fifty-two on the actual cost per one thousand gallons for the year ending the thirty-first day of March nineteen hundred and forty-nine in respect of the Corporation's water undertaking and thereafter until the expiration of the said period of five years on the actual cost as aforesaid for the year ending the thirty-first day of March nineteen hundred and fifty-two:

Provided that the sum to be paid to the Corporation in respect of such filtration and treatment shall in no event be less than three farthings per one thousand gallons;

(ii) as from the expiration of five years from the passing of this Act such price as may be for the time being agreed between the Corporation and the local authorities defined in section 4 (Interpretation) and described in section 5 (Prices for water supplied in bulk to local authorities) of the Halifax Corporation Act 1924 or failing agreement determined as provided by subsections (2) and (3) of the said section 5;

- (f) In order to give effect to sub-paragraph (ii) of the last preceding paragraph the purchasers shall in respect of the revision period commencing on the first day of April nineteen hundred and fifty-two and in respect of all subsequent revision periods be deemed to be local authorities within the meaning of the said section 5;
- (g) All moneys due to the Corporation under this section shall be payable quarterly and such moneys due in respect of any quarter shall be payable within one month from the service by the Corporation of a demand in respect thereof;
- (h) The water to be supplied hereunder shall be filtered and treated in like manner as water supplied to consumers in the borough and the Corporation shall deliver such water into the said meter at a pressure sufficient to raise it into a reservoir placed in the borough of Dewsbury at an altitude of five hundred and seventy-five feet above ordnance datum;

- (i) The water supplied hereunder may be taken wholly by one of the purchasers or may be apportioned between the purchasers in such proportions as they may from time to time agree or as in the absence of agreement may be determined by arbitration ;
- (j) The sums from time to time payable to the Corporation hereunder shall be payable by such one of the purchasers or by the purchasers in such proportions as they may from time to time agree or as may be determined as aforesaid :

Provided that—

- (i) the purchasers shall within one month after the passing of this Act give notice in writing to the Corporation as to the agreement between them or determination with respect to the payment of the said sums ;
- (ii) any notice under this paragraph shall have effect until the purchasers give to the Corporation notice of an alteration of the said agreement ;
- (iii) any such subsequent notice shall operate as from the beginning of the quarter following that during which the notice is given ;
- (k) If in respect of any quarter the Corporation through their own default or by reason of frost drought or other unavoidable cause or accident shall not have been able to deliver into the meter the minimum quantity specified in paragraph (a) hereof the purchasers shall only be required to pay for the amount of water actually supplied.

(2) As from the passing of this Act the following enactments shall be repealed :—

In section 8 (For protection of the corporation of Halifax) of the Dewsbury and Heckmondwike Water Act 1890 the words from “nor shall the supplying authority” to “known as the Savile estate” ;

Section 9 (For protection of the Soothill Upper and Thornhill Local Boards) of the said Act of 1890 ;

Article XII (Supply of water in added area) of the Batley Order confirmed by the Local Government Board's Provisional Orders Confirmation (No. 6) Act 1909 ;

Article XIV (Water supply to added part of Soothill Upper) of the Dewsbury Order confirmed by the said Act of 1909 ;

PART III
—cont.

In section 39 (For protection of Halifax Corporation) of the Batley Corporation Act 1921 the words from “nor shall the Corporation” to “the said one million gallons”; and

the Corporation shall not be entitled to exercise any right of action under the said repealed enactments which they possess or may have possessed.

(3) As from the passing of this Act the following enactments shall be repealed:—

Section 11 (Water supply to Savile Estates Hartishead &c.) of the Halifax Water and Gas Extension Act 1870;

Sections 23 (Supply of water to Savile estate) and 57 (Saving rights of Henry Savile) of the Halifax Water and Gas Extension Act 1876;

Section 44 (Saving rights of Sir John Savile) of the Halifax Corporation Waterworks Act 1888.

(4) As from the passing of this Act the agreements specified in the schedule to this Act shall cease to have effect without prejudice to the rights of any of the parties thereto accrued up to the passing of this Act other than a right of action in respect of an obligation on any party to deliver or to take a definite quantity of water.

(5) Any difference under this section between the Corporation and the purchasers or between the purchasers shall be determined by arbitration.

(6) In this section—

“purchasers” means the mayor aldermen and burgesses of the county borough of Dewsbury and the mayor aldermen and burgesses of the borough of Batley;

“quarter” means a period of three months commencing on the first day of January the first day of April the first day of July or the first day of October in every year.

PART IV

FINANCE

Power to
borrow.

14.—(1) The Corporation shall have power in addition and without prejudice to their powers of borrowing under the Act of 1933 from time to time to borrow without the consent of any sanctioning authority for and in connection with the purpose mentioned in the first column of the following table the respective sums mentioned in the second column thereof and they shall pay off all moneys so borrowed within such periods

as the Corporation may determine not exceeding those respectively mentioned in the third column of the said table:—

PART IV
—cont.

(1) Purpose	(2) Amount	(3) Period for repayment calculated (except where otherwise stated) from the date or dates of borrowing
(a) For the payment of the cost of redeeming the market stock under the provisions of section 20 (Redemption of market stock) of this Act.	The sum requisite	Forty years from the date when the Corporation determine to pay off and redeem the market stock.
(b) The payment of the costs charges and expenses of this Act.	The sum requisite	Five years from the passing of this Act.

(2) The provisions of Part IX of the Act of 1933 so far as they are not inconsistent with this Act shall extend and apply to money borrowed under this section as if it were borrowed under Part IX of that Act and the period fixed for the repayment of any money borrowed under this section shall as respects that money be the fixed period for the purpose of the said Part IX.

15. It shall not be lawful to exercise the powers of borrowing conferred by this Act (other than the power of borrowing to pay the costs charges and expenses of this Act as hereinafter defined) otherwise than in compliance with the provisions of the Local Authorities Loans Act 1945 or of any order for the time being in force made under section 1 of the Borrowing (Control and Guarantees) Act 1946.

Saving for
powers of
Treasury.

8 & 9 Geo. 6.
c. 18.
9 & 10 Geo. 6.
c. 58.

16. Sections 213 and 214 of the Act of 1933 shall apply with respect to any sinking fund formed by the Corporation for the repayment of any money borrowed (otherwise than by the issue of stock) before the passing of this Act under any statutory borrowing power as if it had been borrowed by way of mortgage and the Corporation shall make such adjustments of any existing sinking funds as may be proper.

Application of
Act of 1933 to
existing
sinking funds.

17.—(1) The Corporation may (if they think fit) establish a fund to be called “the capital fund” to which they may pay—

Capital fund.

(a) any sums derived from the sale of any property of the Corporation;

(b) the surplus of the revenue income over the revenue expenditure of the general rate fund (not required by law to be applied to or carried forward for any other purpose) on the thirty-first day of March in any year; and

PART IV
—cont.

- (c) such other sums from the revenue of the general rate fund (including a sum equal to the interest earned on the capital fund and any income arising from the application of that fund to the purposes authorised) as the council may by resolution direct not being moneys directed by law to be applied to any other purpose:

Provided that—

- (i) the aggregate amount paid to the capital fund under paragraphs (b) and (c) of this subsection (in addition to the sum equal to the interest earned on the capital fund and any income arising from the application of the fund to the purposes authorised) shall not except with the consent of and to such extent as may be approved by the Minister exceed in any year the equivalent of four times the product of a penny rate as ascertained or estimated for the purpose of section 9 of the Rating and Valuation Act 1925; and
- (ii) payments into the capital fund shall not be made whenever that fund amounts to ninety thousand pounds or such greater sum as may from time to time be approved by the Minister.

(2) The Corporation may apply the moneys in the capital fund in defraying any expenditure to which capital is properly applicable (other than expenditure in connection with the passenger transport undertaking or the water undertaking of the Corporation) or in providing money for repayment of loans (but not in making the annual payment required to be made therefor):

Provided that the amount to be expended under this subsection shall not exceed the sum of ten thousand pounds in any one transaction unless a greater sum shall in any case be allowed by the Minister.

(3) (a) Pending the application of moneys in the capital fund to the purposes authorised by the last preceding subsection the moneys in the fund shall (unless applied in any other manner authorised by any enactment) be invested in statutory securities.

(b) Any income arising from the investment of the moneys in the capital fund in the manner provided by the foregoing paragraph and any income arising from the application of the fund to the purposes authorised shall be carried to and form part of the general rate fund.

(4) All moneys derived from the sale of any land of the Corporation which are applied from the capital fund under the provisions of this section shall and all other moneys which are applied from the capital fund may if the Corporation think fit be

repaid from the account to which such moneys were advanced by such annual instalments with or without interest and within such period as may be determined by the Corporation.

(5) Any sum derived from the sale of any corporate land of the Corporation as defined in section 305 of the Local Government Act 1933 and paid to the capital fund shall not except with the consent of the Minister be applied otherwise than in the purchase or acquisition of other corporate land.

(6) There shall be carried to the capital fund such part of the moneys standing to the credit of the fund established pursuant to section 111 (Power to create accident fund) of the Halifax Corporation Act 1902 as amended by section 113 (Increase in accident fund and extension of powers to meet claims arising from all accidents) of the Halifax Corporation Act 1911 as the Corporation may determine.

18.—(1) The Corporation may (if they think fit) establish a fund to be called "the renewal and repairs fund" for the purpose of defraying the expenditure to be incurred from time to time in repairing maintaining and renewing any buildings works plant tools machinery appliances horses carts vehicles boilers and equipment and apparatus in connection therewith office machinery furniture fittings and appliances or things and in maintaining and repairing paths and apparatus in public walks and pleasure grounds and may from time to time apply any fund so established or any part thereof in defraying such expenditure but this section shall not apply to any buildings works plant appliances or things for the purposes of any undertaking of the Corporation in respect of which they are authorised to provide a reserve fund or to any building in respect of which they are required by the Acts relating to housing to keep a housing repairs account.

(2) The Corporation may from time to time pay out of the general rate fund such sums as they think fit into a fund to be established under this section.

(3) When the renewal and repairs fund shall amount to the sum of fifty thousand pounds the Corporation shall cease to make payments into the said fund but if the said fund is at any time reduced below the sum of fifty thousand pounds the Corporation may recommence and continue payments until the said fund be restored to the sum of fifty thousand pounds.

(4) (a) Pending the application of moneys forming part of the renewal and repairs fund to the purposes authorised by this section such moneys shall (unless applied in any other manner authorised by any enactment) be invested in statutory securities.

(b) Any income arising from the investment or use of the moneys in the renewal and repairs fund in manner provided by

PART IV
—cont.

this subsection shall be carried to and form part of the general rate fund and (subject to the limitation imposed by subsection (3) of this section) an amount equivalent to such income shall be credited to the renewal and repairs fund.

General
insurance
fund.

19.—(1) The Corporation may (if they think fit) establish a fund to be called “the insurance fund” with a view to providing a sum of money which shall be available for making good all such losses damages costs and expenses as may from time to time be specified in a resolution of the council (in this section referred to as “the specified risks”).

(2) The establishment of an insurance fund under this section shall not prevent the Corporation from insuring in one or more insurance offices against the whole or any part of all or any of the specified risks.

(3) In each year after the establishment of the insurance fund the Corporation shall pay into that fund either—

(a) such a sum as shall in their opinion be not less than the aggregate amount of the premiums which would be payable if the Corporation fully insured in some insurance office of good repute against the specified risks ; or

(b) if the Corporation insure in some insurance office against the whole or any part of all or any of the specified risks such sum as will together with the premiums paid for the last-mentioned insurance be not less than the aggregate amount aforesaid.

(4) When the insurance fund shall amount to the prescribed amount (as hereinafter defined) the Corporation may if they think fit discontinue the yearly payments to the fund but if the fund is at any time reduced below the prescribed amount the Corporation shall recommence and continue the yearly payments to that fund in accordance with subsection (3) of this section until the fund be restored to the prescribed amount.

(5) The Corporation shall provide the yearly payments aforesaid by contributions from the general rate fund and shall show the same in their accounts under the separate heading or division in respect of the particular undertaking department or service of the Corporation which if the specified risks were insured against in an insurance office would be properly chargeable with the payment of the premium of such insurance.

(6) (a) Except so far as the insurance fund and the proceeds of sale of securities in which that fund is invested may be necessary to meet losses damages costs and expenses in consequence of the specified risks all moneys for the time being standing to the credit of the fund shall (unless applied in any

other manner authorised by any enactment) be invested in statutory securities and the interest and other annual proceeds received by the Corporation in respect of such investments shall be carried to the general rate fund.

(b) In addition to the sum required to be paid into the insurance fund by subsection (3) of this section the Corporation shall in every year so long as the fund is less than the prescribed amount carry to the credit of that fund out of the general rate fund an amount equal to the interest and other annual proceeds carried to the general rate fund in pursuance of the last preceding paragraph.

(c) If and so long as the insurance fund amounts to the prescribed amount the interest and other annual proceeds received by the Corporation in respect of or on investments forming part of the insurance fund and carried to the general rate fund may be apportioned in the accounts of the Corporation between the several undertakings departments or services liable to contribute to the insurance fund in such shares or proportions as may be equitable.

(7) (a) The insurance fund shall be applied to meet any losses damages costs or expenses sustained by the Corporation in consequence of the whole or any part of all or any of the specified risks in the order of the dates on which such losses damages costs or expenses become ascertained and if at any time and from time to time the insurance fund shall be insufficient to make good any such losses damages costs or expenses the Corporation may with the sanction of the Minister borrow at interest under and subject to the provisions of Part IX of the Act of 1933 such sums of money as will be necessary to make up the deficiency.

(b) The amounts of the annual charges in respect of interest on and repayment of principal of any sums borrowed in pursuance of this subsection and the amounts of any such deficiencies as aforesaid not made up by borrowing shall be paid out of the general rate fund and charged in the accounts of the Corporation under the separate headings or divisions in respect of such undertakings departments or services of the Corporation and in such proportions as the Corporation may determine having regard to the risks through which such deficiencies arise.

(8) In this section "the prescribed amount" means such sum as may from time to time be prescribed by the Corporation.

(9) If and when the specified risks include losses damages and expenses from and in consequence of—

(a) fire ; or

(b) accidents to any of the employees of the Corporation ;

PART IV
—cont.63 & 64 Vict.
c. ccxxxiv.

there shall be carried to and form part of the insurance fund in case (a) any moneys standing to the credit of the fire insurance fund established pursuant to section 172 (Fire insurance fund) of the Halifax Corporation Act 1900 and in case (b) so much of any moneys standing to the credit of the accident fund established pursuant to section 111 (Power to create accident fund) of the Halifax Corporation Act 1902 as amended by section 113 (Increase in accident fund and extension of powers to meet claims arising from all accidents) of the Halifax Corporation Act 1911 as may not have been carried to the capital fund established pursuant to section 17 (Capital fund) of this Act and thereupon the said section 172 of the said Act of 1900 and the said sections 111 of the said Act of 1902 and 113 of the said Act of 1911 (as the case may require) shall be repealed.

Redemption
of market
stock.

20. The Corporation may at any time by resolution passed at an ordinary or special meeting of the council determine to pay off and redeem the market stock and on such resolution being passed such market stock shall be redeemable by the Corporation by the method and on the terms following that is to say upon transfer to the registered holders of such market stock of such an amount of either two and a half per centum Consolidated Stock 1923 (or after) or two and half per centum Treasury Stock 1975 (or after) of the United Kingdom (as the Corporation in their absolute discretion may by resolution determine) that the gross annual interest thereon will equal the amount of the gross annual dividends of the market stock held by them or upon payment into court in the names of the registered holders of such market stock of a sum equal to the price of such an amount of stock of the United Kingdom as aforesaid in accordance with the provisions of this Act.

Provisions
for carrying
out
redemption
of market
stock.

21. In the event of the council resolving in terms of the immediately preceding section to redeem the market stock the following provisions shall have effect:—

- (1) The Corporation shall as soon as may be after passing such resolution publish notice thereof in the London Gazette and once in each of two consecutive weeks in one or more newspapers circulating in the borough and they shall also cause a notice (in this section referred to as “the notice of redemption”) to be given to every holder of any such market stock by sending the same by post in a registered letter to the address of such holder as entered in the register or to his last known address:
- (2) The notice of redemption shall set forth the terms of such resolution and shall state the method and the terms of the redemption prescribed in the immediately preceding section and this section:

- (3) On or before the day (in this and the next succeeding section referred to as "the transfer day") to be named in the notice of redemption every holder of any such market stock shall transmit or deliver to the Corporation or to a nominee of the Corporation to be named in the notice of redemption the market stock certificate or certificates registered in his name and the Corporation shall thereupon transmit or deliver to him an acknowledgment in writing of the receipt of such market stock certificate or certificates and an undertaking to register in his name or in the name of his nominee stock of the United Kingdom of the amount and in the manner hereinafter in this section mentioned:
- (4) The transfer day shall be a date not less than three months from the date of the notice of redemption:
- (5) In the event of the loss of any certificate for any such market stock the production of proof to the reasonable satisfaction of the Corporation of such loss together with an indemnity against any and every claim in respect of such certificate shall be held to be equivalent to the delivery to the Corporation or their nominee of such certificate:
- (6) Where in terms of this section a holder of any such market stock shall have on or before the transfer day transmitted or delivered to the Corporation or to the nominee of the Corporation the market stock certificate or certificates registered in his name or shall have produced proof of the loss of the same as aforesaid the Corporation shall as soon as may be after the transfer day transfer or cause to be transferred to the name of such holder or to the name of any nominee whom he may appoint by writing transmitted or delivered to the Corporation before the transfer day such an amount of either two and a half per centum Consolidated Stock 1923 (or after) or two and a half per centum Treasury Stock 1975 (or after) of the United Kingdom (as the Corporation in their absolute discretion may by resolution determine) that the gross annual interest thereon will equal the amount of the gross annual dividends on the market stock held by him and the Corporation shall also pay to such holder the amount of dividends accrued in respect of the certificate or certificates delivered up to the Corporation less the amount of any accrued interest on the stock of the United Kingdom transferred:
- (7) In the event of the registered holder of any certificate or certificates for any such market stock failing to

PART IV
—cont.

deliver such certificate or certificates to the Corporation or their nominee or to produce proof of its or their loss as aforesaid on or before the transfer day the Corporation shall as soon as may be after the transfer day pay into court as if it belonged to a trust of which they were trustees in the name of such holder a sum sufficient to purchase at the closing official selling price mentioned in the official list of the London Stock Exchange for the day for which that list is issued last preceding the transfer day such an amount of either two and a half per centum Consolidated Stock 1923 (or after) or two and a half per centum Treasury Stock 1975 (or after) of the United Kingdom (as the Corporation in their absolute discretion may by resolution determine) that the gross annual interest thereon will equal the amount of the gross annual dividends on the market stock held by him and the Corporation shall also cause a notice to be sent by post in a registered letter to such holder stating that such sum has been placed to his credit as aforesaid:

- (8) The delivery to the Corporation or their nominee of the market stock certificate or certificates or the production of proof of the loss of the same in terms of this section or in the case of any market stock certificate or certificates which have not been delivered or proof of the loss of which has not been produced as aforesaid a certificate given in accordance with rules made under section 146 of the Supreme Court of Judicature (Consolidation) Act 1925 stating that the sum referred to in the immediately preceding subsection has been paid into court shall be sufficient discharge to the Corporation and thereupon the market stock shall whether the market stock certificate or certificates have or have not been produced and delivered up as aforesaid be deemed to be and shall be redeemed and an entry of the redemption of such market stock shall be made in the register of stock and such market stock shall be wholly extinguished and thereupon the liability of the Corporation to pay or provide for the dividends on such market stock shall cease and determine and the markets undertaking and the whole lands estates properties and revenues of the Corporation shall be freed and discharged thereof.

15 & 16 Geo. 5.
c. 49.

Stock of
United
Kingdom to
be held in
same rights.

22.—(1) Any stock of the United Kingdom issued and any sums of money paid to the holder of any market stock in pursuance of the two immediately preceding sections shall be held in the same rights on the same trusts and subject to the same powers provisions charges and liabilities as those in on or subject to which any such market stock was or were held immediately before the transfer day and so as to give effect to and not to

revoke any deed will or other instrument or testamentary or other disposition disposing of or affecting any such market stock and every such deed will instrument or disposition shall take effect with reference to the whole or a proportionate part (as the case may be) of the said stock of the United Kingdom and such sum of money as aforesaid.

PART IV
—cont.

(2) Any bequest of or any covenant or provision of any deed will or other instrument relating to any specific amount of market stock shall be held to apply to the stock of the United Kingdom or sum of money which under the two immediately preceding sections is issued or (in the case of any sum of money) paid in substitution for such market stock as aforesaid.

(3) Trustees executors and administrators and all other holders in any representative or fiduciary capacity and persons under disability may and shall accept the stock of the United Kingdom so issued to them or sums of money so paid to them in pursuance of the two immediately preceding sections for the market stock held by them and may hold dispose of or otherwise deal with such stock of the United Kingdom or sums of money in all respects as they might have held disposed of or otherwise dealt with the market stock for which the same are substituted.

23.—(1) Subject to the provisions of this section where a person entitled to receive from the Corporation any sum to which this section applies is lawfully detained as a person of unsound mind in accordance with the Lunacy Act 1890 as amended by any enactment the Corporation may pay the whole of that sum or so much thereof as they think fit to the person having the care of the person so detained as aforesaid and may pay or apply the whole or so much as they think fit of the surplus (if any) thereof to or for the maintenance or benefit of the wife or husband or relations of the person so detained as aforesaid.

Payment of
pension &c.
of person of
unsound mind.
53 & 54 Vict.
c. 5.

(2) Subject to the provisions of this section where a person entitled to receive from the Corporation any sum to which this section applies is in the opinion of the Corporation through mental infirmity incapable of managing his affairs the Corporation may pay or apply the whole or so much as they think fit of that sum to or for the maintenance or benefit of such person or of his wife or husband or relations.

(3) This section applies to any sum payable by the Corporation to an employee or former employee or pensioner of the Corporation or the widow or a child of a deceased employee or pensioner by way of salary wages pension superannuation or other allowance gratuity or annuity or by way of repayment with or without interest of contributions made to any superannuation or other fund being either a lump sum not exceeding one hundred pounds or an instalment of a periodical payment not exceeding one hundred pounds per annum.

PART IV
—cont.

(4) Not less than fourteen days before exercising their power under this section for the first time in relation to any person the Corporation shall give to the Master in Lunacy notice in writing of their intention in that behalf specifying the name and address of that person and the amount and nature of the sums in respect of which the Corporation intend to exercise the said power and in relation to any person to whom subsection (2) of this section applies the Corporation shall at the same time give notice in writing to that person in a form approved by the Master in Lunacy:

Provided that the Corporation may with the approval of the Master in Lunacy exercise the powers of this section in respect of any person notwithstanding that the said period of fourteen days has not expired.

(5) If at any time the Master in Lunacy gives to the Corporation notice in writing that he objects to the exercise by the Corporation of the said power in relation to any person the said power shall as from the date of the receipt by the Corporation of the notice cease to be exercisable by the Corporation in relation to that person unless and until the master withdraws the notice.

(6) The Corporation shall be discharged from all liability in respect of any payment or application of money effected by them in exercise of the said power.

Payments due
to deceased
employees.

24.—(1) If on the death of an employee (which expression in this section includes a former employee or pensioner of the Corporation or other person) to whom or to whose personal representative a sum not exceeding one hundred pounds is due from the Corporation on account of salary wages superannuation allowance pension gratuity grant or repayment of contributions to any superannuation fund or of contributions otherwise made in respect of superannuation with or without interest a grant of probate of the will of the employee or of letters of administration to his estate is not produced to the Corporation within such time (not being less than one month after his death) as the Corporation may think reasonable then at the expiration of that time the Corporation may pay such sum to the person or persons entitled to the residuary-estate of the employee by virtue of the provisions of paragraphs (i) to (vi) inclusive of subsection (1) of section 46 (Succession to real and personal estate on intestacy) of the Administration of Estates Act 1925 and section 9 (Right of illegitimate child and mother of illegitimate child to succeed on intestacy of the other) of the Legitimacy Act 1926 to the intent that such sum shall be applied in due course of administration:

15 & 16 Geo. 5.
c. 23.

16 & 17 Geo. 5.
c. 60.

Provided that—

PART IV
—cont.

- (a) the Corporation may (notwithstanding the receipt of a notice under proviso (b) of this subsection) if they think fit pay out of such sum the funeral expenses of the deceased employee or so much thereof as the Corporation consider reasonable having regard to any death grant which has been or is to be paid under section 22 (Death grants) of the National Insurance Act 1946; 9 & 10 Geo. 6. c. 67.
- (b) if the Corporation receive notice in writing of any claim against the estate of the deceased employee at any time before they shall have paid the whole of such sum in accordance with the provisions of this subsection they shall not (except in any case in which the provisions of section 46 (1) (vi) of the Administration of Estates Act 1925 are applicable) pay such sum or the balance thereof in their hands to any person other than to the personal representative of the deceased employee unless and until such claim has been satisfied disproved or withdrawn.
- (2) Before paying any sum in accordance with the provisions of subsection (1) of this section (except under proviso (a) thereof) to any person other than the personal representative of the deceased employee the Corporation shall require either—
- (a) a statutory declaration or (when payment is made to the Crown or to the duchy of Lancaster or to the duchy of Cornwall) a statement by the person or one of the persons to whom the Corporation may pay and propose to pay such sum or any part thereof to the effect that the total estate of the deceased employee (including such sum but after deduction of debts and funeral expenses) does not exceed four hundred pounds; or
- (b) the production of a certificate from the Commissioners of Inland Revenue to the effect either that no death duties are payable in respect of such sum or that any duties so payable have been paid.
- (3) The Corporation shall be discharged from all liability in respect of any payment or application of money effected by them in exercising their powers under this section.

25. For the purposes of section 15 of the Rating and Valuation Act 1925 the rates due from the person rated for any hereditament within the borough shall be deemed to be in arrear if such rates are not paid within two months after lawful demand in writing has been made for the same. As to recovery of rates from tenants and lodgers. 15 & 16 Geo. 5. c. 90.

PART IV
—cont.

Receipt in
case of
persons not
sui juris.

26. If any money is payable by the Corporation to any employee (other than wages or salary) creditor or holder of any authorised security and the person entitled to such payment is a minor the receipt of the guardian shall be a sufficient discharge to the Corporation.

Power to
charge
supervision
in addition
to costs.

27. Whenever under any public general Act from time to time in force in the borough (other than the Act of 1936) or under any local enactment (other than the provisions of this Act) the Corporation either on the application or in consequence of the default of the owner or occupier of any premises execute any work the cost of which is payable by such owner or occupier the Corporation may include in and recover as part of such cost such additional sum not exceeding five per centum of the cost of the works as they think fit in respect of their establishment charges.

As to rating
of certain
hereditaments.
10 & 11 Geo. 5.
c. lxxvi.

28. As from and after the fifth day of July nineteen hundred and forty-eight section 45 (As to rating in certain classes of hereditaments) of the Halifax Corporation Act 1920 shall be read and have effect as if the words "the Royal Halifax Infirmary" were omitted therefrom.

PART V

MISCELLANEOUS

Sale of coke
and solid
fuel.
52 & 53 Vict.
c. 21.

29. As from the commencement of this section—

- (1) The provisions of sections 20 to 29 inclusive of the Weights and Measures Act 1889 and of any byelaws made by the Corporation thereunder (which provisions and byelaws relate to the sale of coal) shall also apply to the sale of coke within the borough:
- (2) If any seller of coke or any person in charge of any vehicle from which coke is being sold or offered or exposed for sale wilfully makes any false statement as to the weight of the coke or wilfully increases such weight by damping such coke or wilfully does any other act by which the purchaser of the coke shall be defrauded such seller or person in charge shall be liable for every such offence on the first occasion to a penalty not exceeding five pounds and on the second or any subsequent occasion to a penalty not exceeding ten pounds:
- (3) Any inspector of weights and measures of the Corporation may with the consent of the Corporation prosecute before a court of summary jurisdiction any proceedings under or in pursuance of this section:

- (4) The provisions of this section shall apply also to any solid fuel derived from coal or of which coal or coke is a constituent as if it were coke.

30.—(1) In this section the expression “personal weighing machine” means any weighing machine in the borough which is used or exposed for use or proposed to be used or exposed for use for the purpose of ascertaining the weight of any person and—

(a) for the use of which a charge is made or is proposed to be made ; or

(b) which is kept or is proposed to be kept in any premises or place to which the public have access.

(2) The Corporation may make byelaws—

(a) generally with respect to the examination on verification and to the inspection of personal weighing machines and the distinguishing marks to be affixed to personal weighing machines under this section and the circumstances and conditions in and under which such marks may be affixed or cancelled ;

(b) with respect to the tests to be applied for the purpose of ascertaining the accuracy and efficiency of personal weighing machines ;

(c) for fixing the limits of error to be allowed on verification and inspection of any personal weighing machine ;

(d) for fixing the fees to be paid to the Corporation for the examination and marking of personal weighing machines submitted for verification or for the examination of such personal weighing machines as are found to be incorrect or defective.

(3) On and after the expiration of a period of twelve months from the coming into force of any byelaws made under subsection (2) of this section the owner or the person in charge of any personal weighing machine which is used or exposed for use and which is false or unjust beyond the limits allowed by any such byelaws as aforesaid shall be liable to a penalty not exceeding two pounds or in the case of a second or any subsequent offence five pounds and the machine shall be liable to be forfeited.

(4) On and after the expiration of the said period a personal weighing machine shall not be used or exposed for use unless such machine has been examined and approved by an inspector of weights and measures of the Corporation and has been marked with a distinguishing mark by such inspector or unless it has been stamped by an inspector of weights and measures in pursuance of the Weights and Measures Acts 1878 to 1936 and

PART V
—cont.

such stamp has not been cancelled and on and after the expiration of the said period the owner or the person in charge of any personal weighing machine which is used or exposed for use and which is not so stamped or marked shall be liable to a penalty not exceeding two pounds or in the case of a second or any subsequent offence five pounds and the machine shall be liable to be forfeited.

(5) If any person forges or counterfeits or removes any such stamp or distinguishing mark as is referred to in the last preceding subsection or unlawfully stamps or marks a machine with any such stamp or distinguishing mark or knowingly exposes for use any personal weighing machine from which any such stamp or mark has been so removed or on which there is any such forged or counterfeit stamp or mark he shall be liable to a penalty not exceeding five pounds and the machine shall be liable to be forfeited.

(6) (a) Any inspector of weights and measures of the Corporation may at all reasonable times examine and inspect any personal weighing machine which is used or exposed for use and may seize and detain any personal weighing machine which there is reasonable cause to believe may be liable to be forfeited under the provisions of this section and may for such purposes enter any premises or place where there is reason to believe that there is a personal weighing machine which he is authorised to examine and inspect.

(b) Any person who neglects or refuses to produce for such examination and inspection any such personal weighing machine in his possession or on his premises or refuses to permit any such inspector of weights and measures to examine or inspect the same or obstructs the entry of such inspector or otherwise obstructs or hinders him from acting under this section shall be liable to a penalty not exceeding five pounds or in the case of a second or subsequent offence ten pounds.

(7) For the purpose of this section a personal weighing machine shall not be deemed to be stamped by reason of its bearing a cancelled stamp.

(8) A personal weighing machine which is liable to be forfeited under any of the foregoing provisions of this section shall not be forfeited if in the opinion of the court it is reasonably practicable having regard to cost or other relevant circumstances to restore such machine to a condition in which it may lawfully be used or exposed for use under this section.

(9) The provisions of subsections (5) (6) and (7) of this section shall come into operation on but not until the date on which any byelaws made under subsection (2) of this section shall come

into force and the Corporation shall forthwith after the confirmation of any such byelaws give public notice of the provisions of this section by advertisement in a local newspaper circulating within the borough. No evidence shall be required in any proceedings that the provisions of this subsection as to public notice have been complied with.

(10) For the purposes of section 250 of the Act of 1933 the confirming authority as respects byelaws made under this section shall be the Board of Trade.

31. The Corporation may pay the reasonable expenses of the Corporation in the reception and entertainment of distinguished persons residing in or visiting the borough. Entertainment of distinguished visitors.

32.—(1) A noise nuisance shall be liable to be dealt with as a statutory nuisance under the Act of 1936. Provided that no complaint to a justice under section 99 of the said Act shall be of any effect unless it is signed by not less than three householders or occupiers of premises within hearing of the noise nuisance which is the subject of the complaint. Noise nuisance.

(2) In any proceedings under the Act of 1936 in respect of a noise nuisance occasioned in the course of any trade business or occupation it shall be a good defence for the person charged to show that he has used the best practicable means of preventing or mitigating the nuisance having regard to the cost and to other relevant circumstances.

(3) For the purpose of this section a noise nuisance shall be deemed to exist where any person makes or continues or causes to be made or continued any excessive or unreasonable or unnecessary noise which is injurious or dangerous to health.

(4) Nothing contained in this section shall apply to any railway canal or inland navigation undertakers or their servants exercising statutory powers.

(5) Nothing in this section shall affect the power of the Corporation to make byelaws under section 249 of the Act of 1933.

33.—(1) As from the commencement of this section no person of or exceeding the age of sixteen years who has the custody charge or care of a child— Restrictions on attendance at schools and places of assembly.

(a) who is or has been attending any school or any part thereof which for the time being is closed by order of the Corporation or of the education committee of the council with the view of preventing the spread of a disease to which this section applies ; or

(b) who is suffering from a disease to which this section applies ; or

PART V
—cont.

- (c) who with the view of preventing the spread of a disease to which this section applies has been prohibited from attending school by the medical officer or school medical officer ;

shall permit such child to attend any Sunday school or day school or place of public entertainment or assembly without having procured from the medical officer or school medical officer or the medical practitioner attending the child a certificate that in his opinion such child may attend such Sunday school or day school or place of public entertainment or assembly without undue risk of communicating disease to others.

(2) The diseases to which this section applies are notifiable diseases as defined by section 343 of the Act of 1936 and in addition include measles whooping-cough cerebro-spinal fever dysentery acute encephalitis lethargica acute influenzal pneumonia acute primary pneumonia acute polio-encephalitis and acute poliomyelitis.

(3) In this section the expression " day school " means a school (not being a school provided by a local education authority) at which some or all of the children are not boarders but the provisions of this section shall not apply to the attendance at a day school of children who are boarders at that school.

(4) Any person who offends against the provisions of this section shall be liable to a penalty not exceeding forty shillings.

(5) Section 80 (Penalty on guardian permitting infected child to attend school) of the Halifax Corporation Act 1902 and section 76 (To prevent spread of infectious disease amongst children in Sunday schools) of the Halifax Corporation Act 1911 are hereby repealed.

Power to
close schools
and exclude
children from
entertain-
ments.

34.—(1) If the Corporation or any committee of the council acting on the advice of the medical officer with the view of preventing the spread of a disease to which this section applies require the closing of any Sunday school or day school or any department thereof or the exclusion of certain children therefrom for a specified time or the exclusion of children from places of public entertainment or assembly for a specified time such requirement shall be at once complied with.

(2) Any person responsible for the conduct or management of any Sunday school or day school or any department thereof or place of public entertainment or assembly wilfully failing to comply with any such requirement shall for every such failure be liable to a penalty not exceeding five pounds.

(3) The diseases to which this section applies are notifiable diseases as defined by section 343 of the Act of 1936 and in addition include measles whooping-cough cerebro-spinal fever

dysentery acute encephalitis lethargica acute influenzal pneumonia acute primary pneumonia acute polio-encephalitis and acute poliomyelitis.

PART V
—cont.

(4) In this section the expression “ day school ” means a school (not being a school provided by a local education authority) at which some or all of the children are not boarders but the provisions of this section shall not apply to the attendance at a day school of children who are boarders at that school.

(5) Section 77 (Power to close Sunday schools to prevent spread of disease) of the Halifax Corporation Act 1911 is hereby repealed.

35.—(1) No person shall—

(a) prepare for sale ;

(b) sell or offer for sale ; or

(c) deposit for the purpose of sale or preparation for sale ;

any furniture mattress bed-linen clothing or similar article (in this section called “ article ”) if the same is to his knowledge infested with bugs or other vermin or if by taking reasonable precautions he could have known the same to be so infested.

Prohibition
on sale of
verminous
articles.

(2) If a person contravenes the provisions of this section he shall be liable to a penalty not exceeding five pounds and the Corporation upon a certificate of the medical officer or the sanitary inspector may remove any such verminous article and cause the same to be cleansed purified disinfected or destroyed as the case may require and may recover the cost of so doing from such person.

(3) For the purposes of this section—

“ preparation for sale ” shall not include disinfestation ;

“ dealer ” means any person who trades or deals in any of the articles referred to in this section.

36. Section 83 (Cleansing of filthy or verminous premises) of the Act of 1936 shall within the borough have effect as if the following were substituted for subsection (1) of that section :—

Cleansing
of filthy or
verminous
premises.

“ (1) Where the local authority upon consideration of an official representation or a report from any of their officers or other information in the possession of the local authority are satisfied that any premises—

(a) are in such a filthy or unwholesome condition as to be prejudicial to health ; or

(b) are verminous ;

the local authority shall give notice to the owner or occupier of the premises requiring him to take such steps as may be

PART V
—cont.

specified in the notice to remedy the condition of the premises—

(i) by cleansing and disinfecting them ;

(ii) by distempering or whitewashing the interior surface thereof (provided that the owner or occupier as the case may be shall have the right in lieu of distempering or whitewashing the whole or any part of the said interior surface to paper or paint the same) ;

and the notice may require among other things the removal of wallpaper or other covering on the walls and in the case of verminous premises the taking of such other steps as may be necessary for the purpose of destroying or removing vermin. Provided that nothing in this subsection shall apply to a factory to which the Factories Act 1937 applies ”.

1 Edw. 8. &
1 Geo. 6. c. 67.

Collection
and delivery
of washing.

37.—(1) The Corporation may collect and may carry to or from any public washhouse provided by them clothes and other articles intended to be washed or which have been washed at such washhouse and when exercising the powers of this section shall make charges for the collection and carriage of such clothes and other articles :

Provided that the charges to be made under this section shall be such as will produce a revenue sufficient to meet all expenditure incurred by the Corporation under this section.

23 & 24 Geo. 5.
c. 53.

(2) Nothing in this section shall relieve the Corporation from the necessity of obtaining the appropriate licence under the Road and Rail Traffic Act 1933 in respect of any goods vehicle to which that Act applies.

Stopping up
and diversion
of highways.

38.—(1) Subject to the provisions of this section a court of summary jurisdiction if satisfied on the application of the Corporation that a highway within the borough is unnecessary may by order authorise the stopping up thereof and if so satisfied that a highway within the borough can be diverted so as to make it nearer or more commodious to the public may by order authorise it to be so diverted.

(2) Any such application or order may be made with respect to any length of a highway and in the subsequent provisions of this section any reference to a highway shall be construed as a reference to that length thereof to which the application or order relates.

(3) No order shall be made under subsection (1) of this section unless the court is satisfied that notice of the intention to make the application specifying the time and place at which it is to

be made and the order which will be asked for and embodying a plan showing what will be the effect of the order asked for—

- (a) has at least twenty-eight days before the date on which the application is made been served either personally or by registered post on the owners or reputed owners and the occupiers of all land abutting on the highway and (when the application relates to a classified road as defined in the Local Government Act 1929) on the Minister of Transport; and
- (b) has during at least twenty-eight days been exhibited in such manner and in such position on or near the highway as are reasonably sufficient for notifying persons using the highway of the application;

and that a similar notice (except that there may be substituted for the plan a statement of the place where such a plan can be inspected at all reasonable hours without payment) has been inserted once at least in each of four successive weeks in a local newspaper circulating in the borough.

(4) On the hearing of such an application the Corporation and any person who is interested in land abutting on or served by the highway or uses the highway or is otherwise aggrieved shall have a right to be heard and an appeal against the decision of the court may be brought to quarter sessions either by the Corporation or by any such person as aforesaid who was or claimed to be heard by the court.

(5) For the purposes of the provisions of the Summary Jurisdiction Act 1879 as amended by the Summary Jurisdiction (Appeals) Act 1933 with respect to appeals to quarter sessions—

- (a) a refusal by a court of summary jurisdiction to make an order under this section shall be deemed to be an order;
- (b) in a case where more than two persons were heard or claimed to be heard in opposition to an application under this section it shall be sufficient if a notice of appeal against a refusal to make an order upon that application is served upon any two of those persons in addition to the clerk to the court of summary jurisdiction but any of those persons whether served with such a notice or not may appear at quarter sessions as respondents to the appeal;
- (c) any appeal under this section whether against an order or against a refusal to make an order shall be in the nature of a re-hearing.

(6) Every order made under this section shall have annexed thereto a plan signed by the chairman of the court and shall be binding on all persons whatsoever.

PART V
—cont.

(7) Provided that—

- (i) nothing in this section shall authorise the diversion over any land of any highway unless the written consent of every person having a legal interest in that land is produced to and deposited with the court ; and
- (ii) an order under this section authorising the diversion of a highway shall not authorise the stopping up of any part thereof until the new part to be substituted for the part stopped up has been completed to the satisfaction of two justices and a certificate to that effect signed by them has been transmitted by their clerk to the clerk of the peace.

(8) Where an order is made by a court of summary jurisdiction under this section authorising the stopping up or diversion of a highway the clerk of the court shall forthwith transmit the order to the clerk of the peace together if the order be for diverting a highway with the written consents produced to the court and the clerk of the peace shall enrol any documents so transmitted to him and any certificates transmitted to him under subsection (7) of this section among the records of quarter sessions.

(9) Where any highway is diverted in accordance with an order made under this section the substituted highway shall be repairable by the person (if any) by whom the original highway was repairable :

Provided that the owner of any land shall not be required to maintain so much of a highway as is diverted from his land.

(10) Any application or order under this section—

- (a) may include two or more highways which are connected with each other ;
- (b) may relate to the stopping up or diversion of a highway for the purposes of all traffic or subject to the reservation of a bridle way or footway.

(11) The provisions of this section shall be in addition to and not in derogation of any other provisions relating to the stopping up and diversion of highways.

For protection
of Postmaster-
General.

39.—(1) Where any highway or portion of a highway is stopped up in pursuance of an order made under section 38 (Stopping up and diversion of highways) of this Act the following provisions shall unless otherwise agreed in writing between the Corporation and the Postmaster-General have effect in relation to any telegraphic line belonging to or used by the Postmaster-General which is under in upon over along or across such highway or portion of a highway at the time of such stopping up :—

- (a) The power of the Postmaster-General to remove the line shall be exercisable notwithstanding the stopping up of the highway or portion of the highway so however

that the said power shall not be exercisable as respects the whole or any part of the line after the expiration of a period of three months from the date mentioned in subsection (2) of this section unless before the expiration of that period the Postmaster-General has given notice to the Corporation of his intention to remove the line or that part thereof as the case may be ;

- (b) The Postmaster-General may by notice to the Corporation in that behalf abandon the said line or part thereof and shall be deemed as respects the line or any part thereof to have abandoned it at the expiration of the said period of three months unless before the expiration of that period he has removed it or given notice of his intention to remove it ;
- (c) The Postmaster-General shall be entitled to recover from the Corporation the expense of providing in substitution for the line and any telegraphic line connected therewith which is rendered useless in consequence of the removal or abandonment of the line a telegraphic line in such other place as the Postmaster-General may require ;
- (d) Where under paragraph (b) of this subsection the Postmaster-General abandons the whole or any part of a telegraphic line it shall vest in the Corporation and the provisions of the Telegraph Acts 1863 to 1943 shall not apply in relation to the line or part in question as respects anything done or omitted after the abandonment thereof.

(2) As soon as the whole or any portion of any highway has been stopped up the Corporation shall send by post to the Postmaster-General a notice informing him of such stopping up and the period of three months mentioned in subsection (1) of this section shall commence to run from the date on which such notice is sent.

(3) In this section the expression " telegraphic line " has the same meaning as in the Telegraph Act 1878.

41 & 42 Vict.
c. 76.

40.—(1) (a) Whenever by virtue of section 38 (Stopping up and diversion of highways) of this Act any highway or part of a highway in over or under which any apparatus is for the time being laid or placed is stopped up or diverted the Yorkshire Electricity Board (in this section referred to as " the board ") shall be at liberty at their option—

For protection
of Yorkshire
Electricity
Board.

- (i) to remove the apparatus to and relay or replace the same in over or under the highway (if any) substituted for the highway or part of a highway so stopped up or diverted or in such other position as the board may reasonably determine ; or

PART V
—cont.

- (ii) to provide and lay or place other apparatus in over or under such substituted highway or in such other position as aforesaid in lieu of such existing apparatus.

(b) Whenever by reason or in consequence of the exercise by the Corporation of the powers of the said section any apparatus (other than apparatus for which new apparatus has been substituted at the expense of the Corporation under the provisions of this section) is rendered derelict useless or unnecessary the Corporation shall forthwith pay to the board such a sum as may be agreed between the Corporation and the board or as failing agreement may be determined by arbitration as hereinafter provided to be the value of the apparatus so rendered derelict useless or unnecessary and such apparatus shall upon such payment become the property of the Corporation.

(2) The Corporation shall repay to the board the reasonable expenses incurred by them of or in connection with—

- (a) the removal and relaying or replacing of any apparatus and the provision and laying or placing of any new apparatus under the provisions of subsection (1) of this section ;
- (b) the making good of any damage to any apparatus caused by or resulting from any act omission or default of the Corporation their officers servants and workmen in the exercise of the powers of this Act ;

and the reasonable costs of and incidental to—

- (i) the cutting off of any apparatus from any other apparatus ; and
- (ii) any other work or thing rendered reasonably necessary in consequence of any such operations as are referred to in this subsection.

45 & 46 Vict.
c. 56. (3) In this section “ apparatus ” means all or any electric lines and works (as respectively defined in the Electric Lighting Act 1882) for the time being belonging to the board.

(4) (a) Any difference which may arise between the Corporation and the board under this section (other than a difference as to the meaning or construction of this section which does not arise in the course of the arbitration) shall be referred to a single arbitrator to be agreed upon between the parties or in default of such agreement to be appointed on the application of either party (after written notice to the other) by the President of the Institution of Civil Engineers.

(b) In settling any difference under this section the arbitrator shall have regard to any duties or obligations which the board may be under in respect of any apparatus and may if he thinks

fit require the Corporation to execute any temporary or other works so as to avoid so far as may be reasonably possible interference with any purpose for which the apparatus is used.

41. The last foregoing section shall apply in relation to the North Eastern Gas Board as if the said board were named therein in place of the Yorkshire Electricity Board and in the application of the said section to the North Eastern Gas Board the word "apparatus" means all or any mains pipes and other gas apparatus for the time being belonging to the said board.

For protection
of North
Eastern Gas
Board.

42. As from the commencement of this section—

As to means
of escape in
case of fire.

(1) The owner of every building to which this section applies shall cause the means of escape in case of fire provided in connection with such building (in this section referred to as "means of escape") to be inspected at reasonable intervals (the first such inspection to be made within three months of the coming into operation of this section) and shall furnish to the Corporation forthwith after the completion of the first such inspection and during the month of December in the year nineteen hundred and fifty-two and during that month in every third year thereafter a certificate by a competent person as to the condition of the means of escape:

(2) If it appears to the Corporation as the result of the furnishing to them of a certificate in pursuance of subsection (1) of this section or of a report made to them by any authorised officer of the Corporation that the means of escape provided in connection with any building to which this section applies is not properly maintained and kept free from obstruction they may by notice in writing require the owner of the building within a period to be specified in such notice to make good the defect:

(3) If the owner of a building to which this section applies fails to furnish a certificate in accordance with subsection (1) of this section he shall be liable to a penalty of five pounds:

(4) The buildings to which this section applies are—

(a) buildings in which means of escape in case of fire are required to be provided by section 60 (Means of escape from fire in case of certain high buildings) of the Act of 1936;

(b) buildings in which means of escape in case of fire are required to be provided by section 55 (Means of escape from buildings in case of fire) of the Halifax Corporation Act 1911;

PART V
—cont.

(c) any building which exceeds one storey in height and in which the floor of any upper storey is more than twenty feet above the surface of the street or ground on any side of the building and which is used for—

(i) offices ;

(ii) the provision of concerts stage plays and variety and other entertainments ; or

(iii) to which the public have access :

9 Edw. 7. c. 30.

(5) Nothing in this section shall apply to any building in respect of which a licence under the Cinematograph Act 1909 is for the time being in force :

(6) The provisions of Part XII of the Act of 1936 with respect to appeals against and the enforcement of notices requiring the execution of works shall apply in relation to any notice given under this section.

PART VI

GENERAL

Commence-
ment of
certain
provisions
of this Act.

43.—(1) The provisions of this Act to which this section applies shall come into operation on but not until such date as may be fixed by a resolution of the council of which date public notice shall be given by the Corporation by advertisement in one or more local newspapers circulating in the borough.

Every such advertisement shall also state the effect of the provisions to which it relates and the date specified therein as the date on which such provisions shall come into operation which shall not be less than one month after the date of publication, of the advertisement or if the advertisement is published in more than one newspaper on different dates after the date of the first publication of the advertisement.

(2) A copy of a newspaper containing such advertisement shall be sufficient evidence of the publication of the advertisement.

(3) This section shall apply to the following sections of this Act :—

Section 29 (Sale of coke and solid fuel) ;

Section 33 (Restrictions on attendance at schools and places of assembly) ;

Section 42 (As to means of escape in case of fire).

As to appeals.

44. Where any requirement refusal order, determination or other decision against which a right of appeal is conferred by this Act involves the execution of any work or the taking of any

action or makes it unlawful for any person to carry on any business which he was lawfully carrying on up to the time of such requirement refusal order determination or other decision or to use any premises for any purpose for which they were lawfully used up to such time—

PART VI
—cont.

(a) no proceedings in respect of any failure to execute the work or take the action shall be taken ;

(b) the Corporation shall not execute such work or take such action ; and

(c) any such person may carry on such business and use such premises for such purpose ;

until the time for appealing has expired or when an appeal is lodged until the appeal has been disposed of or withdrawn or fails for non-prosecution thereof.

45. The Minister may hold such inquiries as he may consider necessary in regard to the exercise of any powers conferred upon him or the giving of consents under this Act and Section 290 (Power of government departments to direct inquiries) of the Act of 1933 shall apply accordingly.

46. Section 265 (Protection of local authority and their officers from personal liability) of the Public Health Act 1875 shall extend and apply to the purposes of this Act or any local enactment for the time being in force in the borough as if the same were re-enacted therein.

Application
of section 265
of Public
Health Act
1875.
38 & 39 Vict.
c. 55.

47.—(1) The sections of the Act of 1936 hereinafter mentioned shall have effect as if they were re-enacted in Part V of this Act and in terms made applicable thereto (that is to say):—

Application
of provisions
of Act of
1936.

Section 283 (Notices to be in writing ; forms of notices &c.) ;

Section 284 (Authentication of documents) ;

Section 285 (Service of notices &c.) ;

Section 286 (Proof of resolutions &c.) ;

Section 287 (Power to enter premises) ;

Section 288 (Penalty for obstructing execution of Act) ;

Section 289 (Power to require occupier to permit works to be executed by owner) ;

Section 291 (Certain expenses recoverable from owners to be a charge on the premises : power to order payment by instalments) ;

Section 292 (Power to make a charge in respect of establishment expenses) ;

PART VI
—cont.

- Section 293 (Recovery of expenses &c.);
 Section 296 (Summary proceedings for offences);
 Section 297 (Continuing offences and penalties);
 Section 298 (Restriction on right to prosecute);
 Section 299 (Inclusion of several sums in one complaint &c.);
 Section 300 (Appeals and applications to courts of summary jurisdiction);
 Section 301 (Appeals to quarter sessions against decisions of justices);
 Section 302 (Effect of decision of court upon an appeal);
 Section 304 (Judges and justices not to be disqualified by liability to rates);

Provided that—

- (a) the said sections 287 and 288 shall not apply to the provisions of section 30 (Personal weighing machines) of this Act;
 (b) the said section 298 shall not apply to the provisions of section 29 (Sale of coke and solid fuel) or section 30 (Personal weighing machines) of this Act.

(2) Section 328 (Powers of Act to be cumulative) of the Act of 1936 shall have effect as if it was re-enacted in this Act and in terms made applicable thereto.

Crown rights.

48. Nothing in this Act affects prejudicially any estate right power privilege or exemption of the Crown.

Costs of Act.

49. The costs charges and expenses preliminary to and of and incidental to the preparing applying for obtaining and passing of this Act as taxed by the taxing officer of the House of Lords or of the House of Commons shall be paid by the Corporation.

The SCHEDULE referred to in the foregoing Act

Date of agreement	Parties
3rd July 1871 ...	The Corporation. Henry Savile. The local board of the township of Soot-hill Upper. The local board of the township of Thornhill.
3rd August 1876 ...	The Corporation. The local board of the township of Soot-hill Upper.
14th November 1887 ...	The local board of the district of Soothill Upper. The local board of the district of Thornhill. The Corporation.
7th September 1938 ...	The Corporation. The mayor aldermen and burgesses of the borough of Batley. The mayor aldermen and burgesses of the borough of Dewsbury.

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